

SOLVED PRACTICE WORKBOOK

Attorney General and Advocate General - Learner-v2 Refreshed

UPSC complete learning session | Foundation to advanced | Concepts, evidence, practice and answer writing

Attorney General and Advocate General	
01. CONSTITUTIONAL LAW OFFICERS IN A FEDERAL PARLIAMENTARY SYSTEM The Attorney General is constitutionally described as the highest law officer.	02. ARTICLE 76 CLAUSE BY CLAUSE Article 76 clearly delineates through Article 76(1) provides.
03. ATTORNEY GENERAL QUALIFICATION THROUGH ARTICLE 124(3) Article 124(3) requires either holding or one of these attributes.	04. ARTICLE 165 CLAUSE BY CLAUSE The decision control is between 165(2) clause and 165(3) clause.
05. ADVOCATE GENERAL QUALIFICATION THROUGH ARTICLE 217(2) As principal consequence is that the designated post holds.	06. APPOINTMENT: FORMAL CONSTITUTIONAL ACT AND POLITICAL-GOVERNMENTAL REALITY The main-sake limitation is that President/Governor - law officer.
07. TENURE, RESIGNATION, REMOVAL AND CONVENTION Tenure, resignation, removal and convention operates through.	08. UNION RULE 9: ADMINISTRATIVE TERM VERSUS CONSTITUTIONAL PLEASURE The main-sake limitation is no constitutionally fixed term, current.
09. REMUNERATION: CONSTITUTION AND CURRENT RULES As principal consequence is that President/Governor has no.	10. FUNCTIONS: CONSTITUTIONAL CORE AND RULE-BASED OPERATIONAL DETAIL The constitutional core is advice to government, assigned legal duties.
11. ADVICE OPINION AND THE NON-BINDING CHARACTER A law officer gives legal advice to the elected executive members.	12. RIGHT OF AUDIENCE, RIGHT TO PRACTISE AND ASSIGNMENT TO APPEAR The decision control is between RIGHT OF AUDIENCE (RIGHT TO) and RIGHT TO PRACTISE.
13. ARTICLE 88: PARTICIPATION IN PARLIAMENT WITHOUT MEMBERSHIP Article 88 participation in Parliament without membership operates.	14. ARTICLE 177: PARTICIPATION IN STATE LEGISLATURE Article 177 participation in State legislature denotes the.
15. ARTICLES 105(6) AND 194(6): PRIVILEGE EXTENSION, NOT BLANKET IMMUNITY Privately, Articles 105(6) and 194(6) privilege extension, not blanket.	16. CURRENT UNION LAW OFFICER RESTRICTIONS: RULE 8 EXACTLY CONTROLLED The main-sake limitation is that everything else is outside the ordinary.
17. UNION LAW OFFICER TEAM: CONSTITUTIONAL HEAD, RULE-GOVERNED ASSISTANTS Union law officer team: constitutional head, rule-governed assistants.	18. STATE LAW OFFICER ECOLOGY AND THE NO-GENERALISATION RULE The main-sake limitation is that state evidence What is proven What is.
19. ATTORNEY GENERAL AND ADVOCATE GENERAL COMPARED The decision control is between government advised Government of.	20. COMPARISON WITH CAG, LAW MINISTER, SOLICITOR GENERAL AND PUBLIC PROSECUTOR The decision control is between Solicitor General, non-constitutional.
21. COUNCIL OF MINISTERS, PRESIDENT AND GOVERNOR The law officer does not give constitutional "advice" to the.	22. CONFIDENTIALITY, PROFESSIONAL PRIVILEGE AND TRANSPARENCY As principal consequence is that not predominantly a 100 privilege.
23. DUTY TO GOVERNMENT, DUTY TO COURT AND PUBLIC CONSTITUTIONAL ROLE A law officer represents government to court and is also an advocate.	24. REPRESENTATION AND THE GOVERNMENT LITIGATION SYSTEM Nationally, Representation and the government litigation system is.
25. CONTEMPT: CONSENT FUNCTION: NARROW STATUTORY SIGNIFICANCE As principal consequence is that the Attorney General's consent function includes the Attorney.	26. INDEPENDENCE: STRENGTH, VULNERABILITY AND CORRECT VOCABULARY Independence is a professional independence within a relationship.
27. STATE LAW OFFICER APPOINTMENTS AND STATE OF PUNJAB V. BULESHWAR SINGH The decision control is between Court, national, President, Article 161.	28. INSTITUTIONAL LIMITS AND REFORM PROPOSALS Institutional limits and reform proposals operate through support.
29. CURRENT-CONTROL BOARD AS ON 24 AUGUST 2025 Currently, Current control board as on 24 August 2025 is analysed.	30. INTEGRATED REVISION BEFORE ASSESSMENT The decision control is between advice - advisory - court office.

Original deterministic study visual; labels are explanatory, not textual quotations.

Source order: repository knowledge -> official current linkage -> clearly marked analysis. No fabricated PYQs or statistics.

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Attorney General and Advocate General - Complete Uncompressed Learning Session

BASIC MCQS / REMEDIATION

Original MCQs - 36 questions

OM1. Article 76 appointment

The Attorney General for India is formally appointed by

- A. the President B. the Prime Minister C. Parliament D. the Chief Justice of India

Answer: A.

[FACT] Article 76(1) assigns formal appointment to the President.

OM2. Article 165 appointment

The Advocate General for a State is appointed by

- A. the Chief Justice of the High Court B. the Chief Minister C. the State Legislature D. the Governor

Answer: D.

[FACT] Article 165(1) assigns formal appointment to the Governor.

OM3. Attorney General qualification

Which is one valid Article 124(3) route for Attorney General qualification?

- A. membership of Parliament for ten years B. ten years as advocate of a High Court or successive High Courts C. seven years as any advocate D. five years as a district judge only

Answer: B.

[FACT] Citizenship plus one Article 124(3) alternative is required; the ten-year High Court advocacy route is one.

OM4. Advocate General qualification

Which route is unavailable for qualification as Advocate General?

- A. citizenship plus the relevant professional route B. ten years in judicial office in India C. ten years as High Court advocate D. distinguished jurist in the Governor's opinion

Answer: D.

[FACT] Article 217(2) has no distinguished-jurist route.

OM5. Express right of audience

Article 76(3) grants the Attorney General

- A. automatic conduct of every Union case B. a vote in every court conference C. right of audience in all courts in India while performing duties D. power to issue binding legal directions

Answer: C.

[FACT] Audience is a right to be heard, not an exclusive case mandate.

OM6. Article 165 and audience

Which statement is textually correct?

- A. Article 165 limits audience to the Supreme Court B. Article 165 repeats the all-India audience clause C. Article 165 contains no express clause corresponding to Article 76(3) D. Article 165 creates a right to vote in the High Court

Answer: C.

[LIMIT] Court representation by an Advocate General needs professional, assignment and State-rule support; do not invent Article 165 text.

OM7. Article 88

The Attorney General may under Article 88

A. preside over a joint sitting B. participate only if elected as an MP C. vote in Rajya Sabha but not Lok Sabha D. speak and take part in either House, joint sitting and a named committee without voting by office

Answer: D.

[FACT] Article 88 separates participation from voting and membership.

OM8. Article 177

The Advocate General's State-legislative right includes

A. an automatic seat in the Legislative Council B. participation only in a unicameral State C. speaking and taking part in the relevant House(s) and a named committee without a vote D. a casting vote in the Assembly

Answer: C.

[FACT] Article 177 applies to the Assembly and, where present, both Houses.

OM9. Privilege extension

Articles 105(4) and 194(4) primarily

A. extend proceeding-related privilege provisions to constitutionally entitled participants B. make law officers immune from all criminal law C. convert law officers into legislators D. create lifetime personal immunity

Answer: A.

[LIMIT] The extension is functional and proceeding-linked, not blanket immunity.

OM10. Constitutional tenure

Which statement is correct?

A. both offices have a six-year constitutional term B. both can be removed only by impeachment C. both hold office during pleasure without a fixed constitutional term D. both retire at judicial retirement age

Answer: C.

[FACT] Articles 76(4) and 165(3) use pleasure tenure.

OM11. Union service-rule term

Rule 3 of the Law Officers Rules currently provides

A. a constitutionally entrenched six-year term B. a three-year administrative term with notice/reappointment provisions C. election by a Bar Council D. life tenure for the Attorney General

Answer: B.

[LIMIT] Rule 3 does not erase Article 76(4)'s pleasure framework.

OM12. Rule 8 scope

Rule 8 applies to

A. only the Solicitor General B. only panel counsel C. Union "Law Officers" as defined, including AG, SG and ASG D. every State Advocate General automatically

Answer: C.

[FACT] The Rules' definition expressly includes all three Union offices.

OM13. Permitted briefs

Under Rule 8(1)(a), the safest description is that a Union Law Officer may

A. appear freely against a PSU B. act for any party after oral disclosure C. accept every private commercial brief D. hold court briefs only for the enumerated governments/public-side bodies

Answer: D.

[CURRENT] This is why "unrestricted private practice" is an inaccurate shorthand.

OM14. Criminal defence

A Union Law Officer may defend an accused in a criminal prosecution

- A. only with Government of India permission B. only with Supreme Court permission C. never under any circumstance
D. without restriction

Answer: A.

[FACT] Rule 8(1)(b) uses a permission condition, not an absolute bar.

OM15. Company or corporation office

Rule 8 bars a Law Officer from accepting appointment to an office in a company or corporation

- A. only when Parliament objects B. without Government of India permission C. only if listed D. only after retirement

Answer: B.

[FACT] The current text is broader than the common "directorship" shorthand.

OM16. Advice-routing restriction

Advice to a Union Ministry, statutory organisation or PSU must ordinarily be based on a reference received through

- A. the Department of Legal Affairs B. the Election Commission C. the Supreme Court Registry D. the Cabinet Secretariat alone

Answer: A.

[FACT] Rule 8(1)(e) centralises the formal reference route.

OM17. Rule 10 boundary

The general relaxation power cannot relax Rule 8 where

- A. Parliament is not in session B. fees are low C. a State is a party D. the Government of India or a Central instrumentality is or is likely to be affected

Answer: D.

[FACT] Rule 10's proviso preserves the conflict rule in affected Central matters.

OM18. 2026 amendment

The Law Officers (Conditions of Service) Amendment Rules, 2026 primarily substituted

- A. Rule 7 on retainer, fees and allowances B. Rule 8 with unrestricted practice C. Article 76 D. Article 88

Answer: A.

[CURRENT] The amendment took effect from 1 February 2026.

OM19. Solicitor General

The Solicitor General is best classified as

- A. a non-constitutional executive law office governed by rules/notifications B. a judicial office under Article 124 C. a constitutional office under Article 76 D. a constitutional office under Article 165

Answer: A.

[FACT] Article 76 creates only the Attorney General.

OM20. Additional Advocate General

An Additional Advocate General is

- A. automatically a second Advocate General under Article 165 B. a member of the High Court C. a State rule/order-based law office, not separately created by Article 165 D. a Union office under Rule 8

Answer: C.

[LIMIT] State nomenclature and conditions vary.

OM21. Public Prosecutor

A Public Prosecutor is principally

A. a Cabinet minister B. a statutory criminal-justice officer under the BNSS framework C. the State's constitutional adviser under Article 165 D. a constitutional auditor

Answer: B.

[FACT] BNSS Section 18 governs Public Prosecutor appointment architecture.

OM22. CAG comparison

Which office primarily audits public money and reports through constitutional channels?

A. Attorney General B. Public Prosecutor C. CAG D. Solicitor General

Answer: C.

[FACT] The CAG's Articles 148-151 role is audit, not legal advice.

OM23. Law Minister comparison

The Law Minister is

A. the same office as Attorney General B. a non-political constitutional counsel C. a Judge of the Supreme Court D. a political executive minister responsible for the portfolio

Answer: D.

[FACT] Cabinet membership belongs to the ministerial office, not to the Attorney General merely by office.

OM24. Binding force of opinion

An Attorney General's legal opinion

A. can override a statute B. is advisory and does not bind government or court merely by office C. automatically becomes delegated legislation D. binds every court

Answer: B.

[LIMIT] Persuasive quality and institutional weight do not equal adjudicatory force.

OM25. Professional privilege exception

BSA Section 132 does not protect a communication

A. made during professional service merely because service later ends B. between advocate and client merely because it is politically sensitive C. made in furtherance of an illegal purpose D. giving ordinary lawful defence instructions

Answer: C.

[FACT] Illegal purpose and specified later crime/fraud facts are express exceptions.

OM26. Confidential legal-adviser communication

BSA Section 134 generally protects

A. only communications with judges B. every public record from RTI C. confidential communication between a person and legal adviser from compelled court disclosure, subject to its qualification D. all Cabinet decisions forever

Answer: C.

[LIMIT] Evidentiary privilege and RTI exemption are related but distinct legal questions.

OM27. Contempt cognizance

Under Section 15 of the Contempt of Courts Act, which is correct?

A. the Attorney General decides guilt B. the Court may act on its own motion, so consent is not universal C. only the Law Minister may move criminal contempt D. written consent is required even for suo motu action

Answer: B.

[FACT] The consent/motion role is a gate in specified cases, not adjudication.

OM28. Article 143 representation

Union representation in a presidential reference under Article 143 is expressly included in

A. Article 88 alone B. Article 165 C. Article 105(4) D. Rule 5 of the Law Officers Rules

Answer: D.

[FACT] The operational duty appears in Rule 5(b), resting within Article 76's legal-duty framework.

OM29. Advocate General professional conditions

Which statement is safest?

A. Advocate General conditions must be checked against the relevant State's rules/terms B. Union Rule 8 automatically governs every State C. all States prohibit every outside brief identically D. Article 165 itself lists company-office restrictions

Answer: A.

[LIMIT] Federal similarity does not erase State variation.

OM30. Government-change resignation

Resignation of a law officer when the government changes is

A. a convention rather than an express constitutional compulsion B. an impeachment requirement C. mandated by Article 88 D. unnecessary because tenure is life-long

Answer: A.

[ANALYSIS] The convention reflects political confidence; the constitutional text states pleasure.

OM31. Age rule

Which statement is correct?

A. both retire at 70 B. neither Article 76 nor Article 165 fixes a retirement age for the law officer C. the Advocate General must retire at 62 under Article 165 D. the Attorney General must retire at 65 under Article 76

Answer: B.

[LIMIT] Judicial-office retirement provisions are not mechanically imported.

OM32. Duty to court

If a government client demands that a law officer knowingly mislead the court, the correct professional position is

A. client instruction always prevails B. pleasure tenure authorises misleading submissions C. parliamentary privilege applies D. professional duty to court forbids the improper tactic

Answer: D.

[ANALYSIS] Loyal representation is bounded by professional ethics and administration of justice.

OM33. Audience and assignment

Which distinction is correct?

A. audience makes the opinion binding B. audience automatically displaces all other counsel C. audience creates a vote in Parliament D. a right of audience is not the same as assignment to conduct a particular case

Answer: D.

[FACT] Article 76(3), Rule 5 and court procedure answer different questions.

OM34. Executive responsibility

After receiving a law officer's opinion, political responsibility for the governmental decision remains with

A. the elected government/Council of Ministers B. the court registry C. the CAG D. the Bar Council alone

Answer: A.

[ANALYSIS] Advice informs but does not replace responsible government.

OM35. Current-control discipline

Which detail is intentionally unsafe to freeze in a reusable constitutional package?

A. Article 165's pleasure rule B. Article 76's clauses C. Article 88's no-vote rule D. current individual officeholder names

Answer: D.

[CURRENT] Individual appointments are volatile and unnecessary for mastering institutional design.

OM36. Reform classification

Published conflict declarations and transparent selection criteria are best described as

A. existing text of Article 76 B. automatic constitutional amendments C. binding Supreme Court rules for all States D. reform proposals unless formally adopted

Answer: D.

[LIMIT] Answer writing must clearly separate present law from institutional proposals.

Remedial MCQs - 12 questions

RM1. Qualification-route trap

Which statement is correct?

A. Supreme Court qualification includes a distinguished-jurist route; High Court qualification does not B. Advocate General needs Supreme Court qualification C. Attorney General needs ten years judicial office only D. both qualifications require prior judgeship

Answer: A.

[FACT] Compare Articles 124(3) and 217(2).

RM2. Legislature trap

Article 88 gives the Attorney General

A. vote but no committee participation B. speech and participation without a vote by virtue of office C. membership but no speech D. only visitor status

Answer: B.

[FACT] Participation, membership and voting are separate.

RM3. Privilege trap

Article 105(4) means

A. power to punish courts B. extension of specified parliamentary privilege clauses to constitutionally entitled speakers C. lifetime immunity after leaving office D. immunity from all civil and criminal proceedings

Answer: B.

[LIMIT] Always link privilege to proceedings.

RM4. Audience trap

Which statement should be rejected?

A. Article 165 itself reproduces Article 76(3) B. an Advocate General may represent the State under assignment C. professional rules matter for appearance D. AGI has express all-India audience

Answer: A.

[FACT] Article 165 has only three clauses and no matching audience clause.

RM5. Term trap

The best description of Attorney General tenure is

A. six years or age 65 B. immutable three-year constitutional term C. no fixed constitutional term; pleasure, with a current administrative Rule 3 framework D. tenure equal to Lok Sabha

Answer: C.

[LIMIT] State the constitutional and rule layers together.

RM6. Private-practice trap

Rule 8 means that the Attorney General

A. may always appear against Govt B. is limited to enumerated brief classes and conflict rules C. can take every private brief D. cannot appear for any State government

Answer: B.

[CURRENT] "Not a whole-time servant" does not equal unlimited practice.

RM7. Office-classification trap

Which is constitutional?

A. panel counsel B. Additional Advocate General C. Attorney General D. Solicitor General

Answer: C.

[FACT] Article 76 creates the Attorney General.

RM8. Prosecutor trap

Which office is primarily tied to criminal prosecution under the BNSS?

A. CAG B. Law Minister C. Public Prosecutor D. Advocate General in every matter

Answer: C.

[FACT] Do not conflate general legal advice with prosecution.

RM9. Advice trap

The government's receipt of Attorney General advice

A. repeals inconsistent law B. does not transfer political responsibility away from the government C. makes Parliament unnecessary D. prevents judicial review

Answer: B.

[ANALYSIS] Advice is a legal input within responsible government.

RM10. Contempt trap

AGI/SG consent under Section 15 is

A. equivalent to conviction B. a specified initiation filter, subject to the Court's suo motu power C. required for every contempt proceeding D. proof of contempt

Answer: B.

[LIMIT] Keep initiation, cognizance and adjudication separate.

RM11. State-variation trap

Which proposition is accurate?

A. no State can appoint additional law officers B. Article 165 fixes every litigation fee C. all Advocate Generals share identical Union service rules D. State professional terms may vary and require State-specific verification

Answer: D.

[FACT] Official State pages and rules demonstrate operational variation.

RM12. Reform trap

State of Punjab v. Brijeshwar Singh Chahal (2016) should not be cited to claim that

A. the Court displaced the Governor's Article 165 power to appoint the Advocate General B. Article 14 fairness can affect State engagement systems C. transparent/objective reform is desirable D. State-counsel selection has a public element

Answer: A.

[FACT] The judgment expressly preserved Article 165 appointment.

PYQS AND ANSWER PRACTICE

Audited PYQ routing note

- [FACT] The audited owner ledgers contain two direct Mains demands: 2019 GS-II Q14 and 2025 GS-II Q5.
- [FACT] The exact 2025 English wording below is reproduced from the locally held official-paper OCR.
- [FACT] The 2019 ledger securely records year, paper, question number, directive, marks, word limit and neutral demand. Exact paper wording is not reconstructed.
- [FACT] The 2022 Prelims ledger routes Q17 on the Attorney General/Solicitor General distinction but states that the key is unavailable locally.
- [LIMIT] Because the official 2022 key was not independently verified from an accessible official file during this export, no exact option key is asserted or inferred.

Visual 64 - PYQ route audit

Year	Stage	Demand	Treatment
2019	GS-II Q14	Attorney General as chief legal adviser to GoI	direct; neutral audited rendering
2022	Prelims Q17	AG/SG constitutional-position distinction	direct; no key asserted
2025	GS-II Q5	responsibilities, rights and limitations	direct; exact local official wording

Verified PYQ 1 - UPSC GS-II 2025, Q5 - 10 marks, 150 words

“The Attorney General of India plays a crucial role in guiding the legal framework of the Union Government and ensuring sound governance through legal counsel.” Discuss his responsibilities, rights and limitations in this regard.

Demand decoding

- **Discuss** requires role, rights and limitations in a balanced answer.
- “Sound governance” demands an explanation of why legal advice matters, not just an Article list.
- At 150 words, use Article 76, Article 88 and Rule 8; add one precise privilege/tenure limit.

Evidence-led model solution

The Attorney General is the constitutional bridge between Union policy, legal risk and courtroom defence.

Responsibilities: [FACT] Article 76(2) requires advice to the Government of India, assigned legal duties and constitutional/statutory functions. Rule 5 operationalises appearances when required in the Supreme Court/High Courts and representation in Article 143 references. This enables legality checks before and during litigation. [LIMIT] The Constitution does not require personal appearance in every Union case.

Rights: [FACT] Article 76(3) grants audience in all Indian courts. Article 88 permits speech and participation in either House, joint sittings and named committees, without a vote; Article 105(4) extends proceeding-related privileges.

Limitations: [FACT] Office is held during presidential pleasure, with no fixed constitutional term. Rule 8 bars adverse/conflicting briefs, restricts permitted brief classes, requires permission for criminal defence and company/corporation office, and routes departmental advice through DLA. His opinion binds neither government nor court.

Thus, the office advances lawful governance, but professional credibility must offset pleasure tenure and client-conflict pressures.

Why this earns marks: It answers all three limbs, distinguishes Constitution from Rules, links advice to governance and ends with a qualified institutional verdict.

Verified PYQ 2 - UPSC GS-II 2019, Q14 - 15 marks, 250 words

Neutral audited rendering: Discuss the Attorney General as the chief legal adviser and lawyer of the Government of India.

Demand decoding

- The answer must explain both **adviser** and **lawyer**.
- "Discuss" permits evaluation of the government-counsel/constitutional-functionary tension.
- Use functions, enabling rights, restrictions and a graded conclusion.

Evidence-led model solution

Article 76 creates the Attorney General as the Union's highest law officer: a constitutional office whose daily work is both advisory and forensic.

Chief legal adviser: [FACT] Article 76(2) requires advice on legal matters and performance of assigned legal duties. Rule 5 routes Government of India matters to Law Officers and covers constitutional/statutory questions. [ANALYSIS] Sound advice tests competence, procedure, fundamental rights and litigation risk before policy hardens into dispute. [LIMIT] The opinion is advisory; ministerial government remains politically responsible and courts retain final interpretive authority.

Government lawyer: [FACT] Rule 5 provides for appearance when required in Supreme Court and High Court cases and Article 143 references. Article 76(3) supplies all-India audience. [LIMIT] Audience is an enabling right, not a constitutional command to argue every Union case; SGs, ASGs and panel counsel share assigned litigation.

Parliamentary role: [FACT] Article 88 permits participation in both Houses, joint sittings and named committees without vote. Article 105(4) extends proceeding-linked privileges, not blanket immunity.

Constraints and ethics: [FACT] Pleasure tenure provides no removal security. Rule 8 restricts briefs to enumerated public-side bodies, bars adverse and prospective conflicts, conditions criminal defence and company office, and centralises references through DLA. BSA Sections 132-134 protect candid legal communication subject to illegal-purpose, crime/fraud and other legal qualifications.

The Attorney General is therefore the government's lawyer but not its uncritical mouthpiece: institutional value lies in loyal representation combined with candour to court and preventive constitutional advice.

Why this earns marks: It treats adviser and lawyer as distinct limbs, uses named provisions, corrects overstatements and evaluates the office's dual-role tension.

Verified PYQ 3 - UPSC Prelims 2022, Q17 - routed distinction

Audited demand: constitutional and institutional distinction between the Attorney General of India and Solicitor General of India.

Official-key status: The audited local ledger records the question but not a usable key. No option or exact key is asserted here.

Evidence control for revision

- [FACT] Article 76 creates only the Attorney General.
- [FACT] Article 88 names the Attorney General, not the Solicitor General, for parliamentary participation.
- [FACT] A government-change resignation is convention, not an express constitutional command.
- [FACT] The Solicitor General is a non-constitutional executive law officer governed by the Law Officers Rules.

[LIMIT] These controls are supplied for concept revision; they are not represented as an independently verified official answer key.

Original solved Mains practice - 8 questions

M1. 10 marks, 150 words

Question: Explain the constitutional qualifications, appointment and tenure of the Attorney General of India.

Model solution

Article 76 creates a legal adviser selected for Supreme-Court-level professional standing but without judicial tenure.

Qualification: [FACT] Article 76(1) cross-refers to Article 124(3). The person must be an Indian citizen and satisfy one alternative: five years as High Court Judge, ten years as High Court advocate, or distinguished jurist in the President's opinion. [LIMIT] Prior Supreme Court judgeship and a retirement-at-65 rule are not Attorney General requirements.

Appointment: [FACT] The President formally appoints. [ANALYSIS] In parliamentary practice the choice reflects the elected government's confidence, because the office advises and represents it.

Tenure: [FACT] Article 76(4) provides presidential pleasure and presidentially determined remuneration; it states no fixed term or impeachment process. [CURRENT] Rule 3 supplies a three-year administrative term/notice framework for Union Law Officers, but does not convert pleasure into constitutional security.

Thus, high qualification is combined with politically responsive tenure, making professional independence more important than formal removal protection.

Why this earns marks: It separates cross-referenced qualification, formal appointment, constitutional pleasure and current service-rule detail while correcting the age trap.

M2. 10 marks, 150 words

Question: Distinguish legislative participation from legislative membership and privilege in the case of the Attorney General and Advocate General.

Model solution

The Constitution enables expert legal participation without making either law officer a legislator.

[FACT] Article 88 permits the Attorney General to speak and take part in either House of Parliament, a joint sitting and a committee of which he may be named a member. Article 177 gives the Advocate General the equivalent right in the State Assembly, both Houses in a bicameral State and a named committee. Both Articles expressly deny a vote by virtue of office.

[FACT] Articles 105(4) and 194(4) extend specified privilege clauses to constitutionally entitled speakers as they apply to legislators. This protects effective participation, especially speech within proceedings.

[LIMIT] Three equations are false: participation is not House membership; a named committee role does not create an electoral mandate; and privilege is not blanket immunity for private conduct, unrelated offences or court advocacy.

Therefore, the design admits legal expertise into legislative deliberation while preserving democratic voting exclusively for members.

Why this earns marks: It uses all four controlling Articles, states the joint-sitting difference and precisely limits privilege.

M3. 10 marks, 150 words

Question: "The Attorney General is not an ordinary full-time civil servant, but neither is private practice unrestricted." Explain with reference to current rules.

Model solution

The statement corrects two opposite simplifications about the Union's chief law officer.

[FACT] Article 76 creates a constitutional office, not a Cabinet post or ordinary civil-service cadre. Yet the Law Officers Rules impose a controlled professional regime. Rule 8(1)(a) permits court briefs only for enumerated governments and public-side bodies; it does not authorise a general private clientele.

[FACT] Rule 8 also bars advice against Gol/PSUs and prospective conflicts, requires permission to defend an accused in criminal prosecution or accept company/corporation office, and requires ministry/statutory-body/PSU references through DLA. Rule 10 prevents relaxation of Rule 8 where Gol or a Central instrumentality is or is likely to be affected.

[CURRENT] The 2026 amendment updated Rule 7 fees, not these Rule 8 controls.

Thus, the office remains professional rather than a regular civil post, but loyalty and conflict restrictions sharply bound outside work.

Why this earns marks: It identifies the current rule, gives exact restriction categories and avoids the stale “free private practice” formulation.

M4. 15 marks, 250 words

Question: Compare the constitutional position of the Attorney General of India and the Advocate General of a State. Why is the latter not merely a smaller copy of the former?

Model solution

Articles 76 and 165 create federal counterparts, but textual and operational differences prevent mechanical duplication.

Common constitutional design: [FACT] President/Governor formally appoint a person with the relevant judicial qualification. Both advise their government, perform assigned legal duties, discharge constitutional/statutory functions, hold office during pleasure and receive remuneration determined by the constitutional head. Neither has a fixed constitutional term or special removal process.

Qualification: [FACT] The Attorney General must satisfy Article 124(3): citizenship plus five years as High Court Judge, ten years as High Court advocate, or distinguished jurist. The Advocate General satisfies Article 217(2): citizenship plus ten years judicial office or High Court advocacy. [LIMIT] Judicial retirement ages are not law-officer tenure rules.

Audience: [FACT] Article 76(3) expressly grants all-India right of audience. [LIMIT] Article 165 has no parallel clause. Advocate-General appearances arise through advocate status, assignments and State rules; no nationwide constitutional claim should be invented.

Legislative role: [FACT] Articles 88 and 177 permit participation without vote. Article 88 includes a parliamentary joint sitting; State legislatures have no equivalent joint-sitting text. Articles 105(4)/194(4) extend proceeding-related privilege provisions.

Operational conditions: [CURRENT] Union Rule 8 precisely controls briefs and conflicts. State conditions vary: Kerala's official page identifies a 1956 service-rule notification, while current State engagement frameworks may differ.

Therefore, the offices share a constitutional purpose but operate through distinct qualifications, audience text, territorial clients and professional regimes.

Why this earns marks: It compares six dimensions, names each Article, highlights the decisive audience asymmetry and uses State variation as a qualification.

M5. 15 marks, 250 words

Question: Is the Attorney General primarily government counsel or a constitutional functionary? Examine.

Model solution

The Attorney General is constitutionally constituted government counsel whose professional legitimacy requires conduct beyond partisan advocacy.

Government-counsel core: [FACT] Article 76(2) directs advice to the Government of India and assigned legal duties. Rule 5 operationalises appearances when required in Supreme Court/High Court matters and Article 143 references. Rule 8's adversity and prospective-conflict bars confirm that the Union is the central client. [LIMIT] The Attorney General is not an ombudsman free to litigate against that client.

Constitutional-functionary features: [FACT] The office is created by Article 76, requires Article 124(3) qualification and possesses all-India audience. Article 88 permits participation in Parliament without vote; Article 105(4) extends proceeding-linked privileges. The Contempt of Courts Act, Section 15, assigns a specified public gatekeeping role, subject to the Court's suo motu power.

Professional-public constraint: [FACT] BSA Sections 132-134 support candid client communication but preserve illegal-purpose and crime/fraud exceptions. As an advocate, the Attorney General owes candour to court. [ANALYSIS] Preventive advice should stop unlawful policy, not merely defend it later.

Structural tension: Pleasure tenure and government confidence may encourage alignment; confidentiality can reduce public visibility. Conversely, legal expertise and professional reputation can strengthen independent candour.

The better view is not either/or: the Attorney General is government counsel by function and a constitutional functionary by source and enabling rights. The office succeeds when loyalty means lawful, candid representation rather than uncritical endorsement.

Why this earns marks: It frames both sides, uses Constitution, Rules, evidence law and contempt law, and reaches a graded rather than rhetorical verdict.

M6. 15 marks, 250 words

Question: Distinguish the Attorney General, Solicitor General, Advocate General, Additional Advocate General, Law Minister, CAG and Public Prosecutor.

Model solution

These offices differ by legal source, territorial level and institutional function; grouping them as “government law posts” obscures constitutional design.

Constitutional advisers: [FACT] Article 76 creates the Attorney General, the Union's highest law officer, with Article 124(3) qualification, all-India audience and Article 88 participation. Article 165 creates the State Advocate General with Article 217(2) qualification and Article 177 participation. Both serve at pleasure.

Assistant law officers: [FACT] The Solicitor General is non-constitutional and governed by the Union Law Officers Rules. An Additional Advocate General is State rule/order based; Article 165 creates only one constitutional office category. Their litigation authority depends on appointment and assignment.

Political executive: The Law Minister leads the governmental portfolio and is collectively responsible as a minister. The Attorney General is not made a minister by office.

Auditor: [FACT] The CAG under Articles 148-151 audits public finance and reports through President/Governor to legislatures. It neither advises government as client nor conducts ordinary litigation.

Prosecutor: [FACT] Public Prosecutors operate under BNSS Section 18 and conduct criminal prosecutions, appeals and proceedings. They are not general constitutional advisers.

Classification test: ask whether the office is constitutional, statutory, executive/rule-governed or political; then identify client, forum and legal effect.

[LIMIT] “Highest law officer” does not make the AGI a superior court, and constitutional status does not automatically make every assistant office constitutional.

Why this earns marks: It classifies every named office by source and function, gives relevant Articles/statute and ends with a reusable discrimination test.

M7. 20 marks, 250 words

Question: Analyse the ethical and institutional challenges facing India's constitutional law officers. Suggest reforms without undermining responsible government.

Model solution

Constitutional law officers must combine client loyalty, duty to court and public-law responsibility within a pleasure-tenure design.

Conflicts: [FACT] Union Rule 8 restricts brief classes, adverse/prospective conflicts, criminal defence and company/corporation office. Yet complex government companies, PSUs and public-private arrangements can create indirect conflicts. A documented conflict screen and recusal protocol should accompany every sensitive assignment.

Pleasure and politicisation: [FACT] Articles 76(4) and 165(3) provide no fixed constitutional term or special removal process. Political confidence is legitimate for counsel, but abrupt or opaque replacement may weaken candid advice. Published eligibility criteria, a stable tenure convention and reasoned appointment records could improve credibility without legally fettering pleasure.

Court versus client: An advocate cannot mislead court or suppress controlling law. Training, peer review of high-impact pleadings and a written professional-standards protocol can reinforce candour.

Privilege versus transparency: [FACT] BSA Sections 132-134 protect candid legal communication with exceptions; RTI Section 8(1)(e) has a public-interest qualification. Governments should disclose the decision and legal basis where possible while protecting genuinely privileged strategy. Blanket secrecy and blanket disclosure are both unsound.

State variation and capacity: State rules differ. *State of Punjab v. Brijeshwar Singh Chahal (2016)* encouraged transparent, fair and objective State-counsel selection while preserving Article 165. States should publish panels, competence criteria and performance review.

Litigation quality: The 2025 DLA framework supports legal cells, early scrutiny, coordinated pleadings and compliance. Complete records and reasoned appeal filters matter more than ceremonial status.

Reform should create "independent candour within responsible government": transparent selection, rigorous conflict control, protected confidentiality with lawful exceptions, and accountable litigation systems.

Why this earns marks: It addresses ethics, tenure, privilege, federal variation and litigation management, names current law and keeps every proposal constitutionally qualified.

M8. 20 marks, 250 words

Question: Evaluate the constitutional and operational architecture through which legal advice becomes government litigation in India. Identify its principal limits.

Model solution

India's architecture is layered: the Constitution creates law officers, rules allocate duties, professional law governs conduct and executive systems manage cases.

Constitutional entry: [FACT] Articles 76 and 165 create Union/State advisers. Their core duty is advice on legal matters and assigned legal work; Article 76(3) adds all-India audience. Articles 88/177 admit them to legislative proceedings without vote, while Articles 105(4)/194(4) extend proceeding-linked privileges.

Operational conversion: [FACT] Union Rule 5 covers referred advice, required Supreme Court/High Court appearances and Article 143 references. Rule 8 prevents adverse briefs and fragmented direct instructions. The 2025 DLA directive adds legal cells, fact collection, counsel assignment, pleading coordination, limitation control, appeal review and compliance monitoring. State systems use their own rules and Law Departments.

Professional layer: Advocates Act/court rules govern practice and appearance. BSA Sections 132-134 protect confidential legal communications subject to illegal-purpose, crime/fraud, waiver and procedural qualifications. Public Prosecutors remain separately governed by BNSS Section 18.

Limits: A law officer cannot repair missing records, conflicting departmental instructions or routine appeal culture. Opinion is advisory, not binding; audience is not exclusive assignment; privilege is not absolute secrecy; pleasure tenure can affect perceived independence. Article 165 does not supply nationwide audience, and State terms vary.

Therefore, good government litigation begins before court: lawful policy design, complete facts, candid advice, conflict-free allocation and timely compliance. Constitutional prestige without institutional preparation produces weak advocacy.

Why this earns marks: It traces the entire chain from constitutional source to litigation outcome, integrates current rules and identifies doctrinal and administrative limits.